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April 8, 2025

ENGROSSED HOUSE
BILL NO. 2590

By: Staires of the House

and

Guthrie of the Senate

An Act relating to public finance; imposing requirement on Office of Management and Enterprise Services; requiring certain form for use in contracts related to management of federal funds; prescribing required content of form; requiring filing of form with certain entities and public officials; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 255.10 of Title 62, unless there is created a duplication in numbering, reads as follows:

A. The Office of Management and Enterprise Services shall develop a form for use by each agency, board, commission, department or other entity organized within the executive branch of state government for use by such governmental entity in identifying prospective vendors for contracts to manage federal funds if such funds management is permissible pursuant to the federal law enabling and transferring such funds for expenditure by the state governmental entity. Each such governmental entity shall complete

1 the form and submit it to the Office of Management and Enterprise
2 Services as required by the Office of Management and Enterprise
3 Services.

4 B. The form shall include, but shall not be limited to, the
5 following:

6 1. The legal name of the entity proposing to manage the federal
7 funds pursuant to contract, including any trade name or similar name
8 which is not the formal legal name of the entity that will enter
9 into the contract;

10 2. The jurisdiction in which the prospective vendor entity was
11 originally incorporated or otherwise created pursuant to the laws of
12 the applicable jurisdiction;

13 3. The legal names of the principal officers of the prospective
14 vendor entity which proposes to manage the federal funds, which may
15 include, but shall not be limited to the chief executive officer,
16 the chief financial officer, the chief information or technology
17 officer and the chief operating officer;

18 4. A listing of the prior experience of the prospective vendor
19 entity or its officers or employees with regard to the management of
20 federal funds on behalf of any state or local government entity;

21 5. The most recently completed financial audit of the books and
22 records of the prospective vendor entity prior to the date as of
23 which the form prescribed pursuant to the provisions of this section
24 is submitted to the Office of Management and Enterprise Services, in

1 cases involving a vendor with no prior experience in the management
2 of federal funds. No vendor shall be required to disclose
3 information which is proprietary or protected from disclosure by
4 private agreement or that is considered to be a trade secret.

5 6. Any and all pending civil cases, whether in federal court,
6 state court or the judicial system of any other country or nation
7 which identifies the prospective vendor entity as a defendant in a
8 proceeding related directly to the management of federal funds.

9 SECTION 2. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 255.11 of Title 62, unless there
11 is created a duplication in numbering, reads as follows:

12 The forms submitted to the Office of Management and Enterprise
13 Services as required by this act shall also be submitted to the
14 Governor, the Speaker of the Oklahoma House of Representatives, the
15 President Pro Tempore of the Oklahoma State Senate, and the Chairs
16 and Vice-Chairs of the standing committees of both chambers of the
17 Oklahoma Legislature responsible for appropriation and budget
18 matters.

19 SECTION 3. This act shall become effective November 1, 2025.

20 COMMITTEE REPORT BY: COMMITTEE ON RETIREMENT AND GOVERNMENT
21 RESOURCES
22 April 8, 2025 - DO PASS
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